

Amendment No. 1 to HB0069

Crawford
Signature of Sponsor

AMEND Senate Bill No. 133

House Bill No. 69*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 2, Chapter 2, is amended by creating the following as a new part:

Part 4. Verification of Voter Eligibility.

2-2-401. Verification of eligibility to vote based upon United States citizenship.

(a) The coordinator of elections, in collaboration with the department of safety, shall, prior to January 1, 2028, create a secure, electronic portal through which each county administrator of elections may access information to verify, prior to processing an applicant's application to register to vote, whether the applicant is a non-United States citizen based upon records on file.

(b) In carrying out subsection (a), the coordinator of elections and department:

(1) Shall identify the parameters of information of an applicant to register to vote that may be submitted and received through the portal by an administrator;

(2) Shall ensure that, upon submission of such information by an administrator, the administrator receives accurate and current information regarding the citizenship status of the applicant on file with the department without undue delay;

(3) Shall ensure that the portal has the capacity to respond to a high volume of daily submissions of applicant information by administrators across this state as specified by the coordinator of elections; and

(4) May develop a temporary alternative method for the verification of citizenship by an administrator in the event that the portal is offline, inaccessible, malfunctioning, or undergoing maintenance.

(c) If a county administrator rejects an application based upon information received pursuant to this section, the administrator shall provide written notice to the applicant of the applicant's right to appeal the decision in accordance with § 2-2-125.

2-2-402. Verification of eligibility to vote based upon felony conviction.

(a) The coordinator of elections, in collaboration with the Tennessee bureau of investigation (TBI), shall, prior to January 1, 2028, create a secure, electronic portal through which each county administrator of elections may access information to verify, prior to processing an applicant's application to register to vote, whether the applicant is ineligible to vote based upon records on file as the result of a Tennessee felony conviction, or alternatively, whether a person is eligible to vote.

(b) In carrying out subsection (a), the coordinator of elections and TBI:

(1) Shall identify the parameters of information of a person to register to vote that may be submitted and received through the portal by an administrator;

(2) Shall ensure that, upon submission of such information by an administrator, the administrator receives accurate and current information regarding the eligibility status of the person without undue delay;

(3) Shall ensure that the portal has the capacity to respond to a high volume of daily submissions of information by administrators across this state as specified by the coordinator of elections; and

(4) May develop a temporary alternative method for the verification of eligibility by an administrator in the event that the portal is offline, inaccessible, malfunctioning, or undergoing maintenance.

(c) If a county administrator rejects an application based upon information received pursuant to this section, the administrator shall provide written notice to the applicant of the applicant's right to appeal the decision in accordance with § 2-2-125.

(d) Any county administrator who accesses the portal for a purpose other than verifying a person's eligibility to register to vote or to vote shall lose access to the portal. In consultation with the coordinator of elections, access may be reinstated at the discretion of the bureau.

2-2-403. Severability.

If a provision of this part or its application to a person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the part that can be given effect without the invalid provision or application, and to that end, the provisions of this part are severable.

SECTION 2. Tennessee Code Annotated, Section 2-2-125, is amended by deleting subsection (b) and substituting instead the following:

(b) The administrator shall provide written notice to the registrant that the registrant has a right to appeal the decision to the commission within ten (10) days from the date the notice was sent. The administrator shall include with such notice an appeal form.

SECTION 3. Tennessee Code Annotated, Section 38-6-118(d), is amended by adding the following as a new subdivision:

(3) Notwithstanding subdivision (d)(1), the bureau shall share expunged information with the coordinator of elections, upon request, for the purposes of determining a person's eligibility to register to vote or to vote.

SECTION 4. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 5. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.